

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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JOEL BRATHWAITE, III,

Plaintiff,

**SECOND AMENDED
VERIFIED COMPLAINT**
Index No.:20173/2019E

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, CAPTAIN JEFFREY HEILIG,
TAX ID #941886, POLICE OFFICER TOMOR BERISHA.
TAX ID #953678, SHIELD #10417, POLICE OFFICER
HEILIG ECHEVARRIA, TAX ID #953836, SHIELD #30837,
AND HEILIG DOE (WHOSE IDENTITY IS PRESENTLY
UNKNOWN), ALL AS POLICE OFFICERS AND IN
THEIR INDIVIDUAL CAPACITIES,

Defendants.
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The plaintiff, Joel Brathwaite, III, by his attorneys, Emdin & Russell, LLP complaining of the Defendants, respectfully shows to this court and alleges:

1. Upon information and belief, that at all times hereinafter mentioned, the Defendant, The City of New York, hereinafter referred to as "City", was, and still is, a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
2. Upon information and belief, at all times hereinafter mentioned, the Defendant, the City of New York, i.e. "City", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter referred to as "NYPD", including all the police officers and correction officers therein.
3. Upon information and belief, at all times hereinafter mentioned, and on the 17th day of January, 2018, Police Officer Captain Jeffrey Heilig, hereinafter referred to as "Heilig" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 43rd Precinct., and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief, Officer Heilig was/is described as a tall Caucasian male.

4. Upon information and belief, at all times hereinafter mentioned and on the 17th day of January, 2018, "Heilig", was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee.
5. Upon information and belief, at all times hereinafter mentioned, and on the 17th day of January, 2018, Police Officer Tomor Berisha, hereinafter referred to as "Berisha" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 43rd Precinct, and at all relevant times set forth below acted in the capacity of a police officer.
6. Upon information and belief, at all times hereinafter mentioned and on the 17th day of January, 2018, "Berisha" was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee. Officer Berisha was/is described as a baldheaded stout Caucasian male.
7. Upon information and belief, at all times hereinafter mentioned, and on the 17th day of January, 2018, Police Officer John Echevarria, whose identity is presently unknown, hereinafter referred to as "Echevarria" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to 43rd Precinct., and at all relevant times set forth below acted in the capacity of a police officer.
8. Upon information and belief at all times hereinafter mentioned and on the 17th day of January, 2018, "Echevarria", was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee.
9. Upon information and belief, at all times hereinafter mentioned, and on the 17th day of January, 2018, Police Officer John Doe, whose identity is presently unknown, hereinafter referred to as "Doe", was employed as a Police Officer by the "City" and/or "NYPD" and assigned to 43rd Precinct., and at all relevant times set forth below acted in the capacity of a police officer.
10. Upon information and belief at all times hereinafter mentioned and on the 17th day of January, 2018, "Doe", was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee.
11. Collectively, "Heilig," "Berisha," "Echevarria," and "Doe" will hereafter be referred to as the "Officers".

12. Upon information and belief, on January 17th, 2018 the "Officers", individually and/or collectively, were acting under and required to follow the New York City Police Patrol Guidelines.
13. On the 17th day of January, 2018, plaintiff, Echevarrial Brathwaite, III, hereinafter referred to as "Brathwaite, III" was a resident of the State of New York, County of Bronx.
14. That on January 17th, 2018, at approximately 12:50 a.m., Plaintiff, Brathwaite, III, was lawfully walking from the #2 Train Station located at 180th Street, Bronx, New York.
15. At that time and location, the plaintiff walking toward his residence located at 1936 East Tremont Avenue, Bronx County within the State of New York.
16. Plaintiff was detained by the named "Officers" for which one officer yelled to him "Hey big guy let me talk to you for a second." The officer then jumped out from an unmarked vehicle and contemporaneously the other named Officers exited said vehicle.
17. Plaintiff, "Brathwaite, III," continued to walk when the Officers then surrounded Plaintiff.
18. Officers then informed the Plaintiff that a robbery just occurred in the area.
19. One of the Officers then grabbed Plaintiff's arms while he was being searched. Plaintiff was not free to leave. The Plaintiff did not consent to being searched.
20. During said illegal search, Officers recovered Plaintiff's box cutter he used at work at UPS. The Officers informed the Plaintiff that they did not care about the object and that "They are all friends." This comment occurred during the Officers' search.
21. Plaintiff asked, "What are you guys doing?" as the search became more intrusive.
22. In response to the Plaintiff's comment, and gesturing to leave, Plaintiff was placed in a choke hold from behind by Heilig, upon information and belief.
23. One of the named Officers pulled Plaintiff toward the unmarked vehicle, whereupon his clothes were lifted while Plaintiff lost consciousness. One Officer then fired a taser into the side and/or backside of Plaintiff for which he was then released from the chokehold and left to fall on the ground.
24. Upon hitting the ground, the Plaintiff bruised his body. Also, when Plaintiff fell to the ground, he was kneed, punched about the body and head.
25. The Plaintiff was struck with a hard blunt object on the leg-calf area.

26. Plaintiff believes that all the Officers participated in his beating because he felt multiple kicks, strikes and punches to his body simultaneously.
27. While being beaten, the Plaintiff was tased again and then placed in handcuffs.
28. The Plaintiff received bruising to his hands and arms as a result of him holding his hands/arms over his head to protect himself from being struck.
29. Plaintiff was eventually restored to his feet and placed in a police vehicle and transported to the 43rd Precinct.
30. Upon arriving at the 43rd Precinct, the Plaintiff was searched at the front desk and then placed in a holding cell.
31. At the precinct, the Plaintiff was searched again; this search was a strip search whereupon he was stripped to his underwear and ordered to squat and cough.
32. After being stripped searched and placed back into a holding cell the Plaintiff tried to sleep by leaning his back against the cell wall, whereupon he felt a sharp pain.
33. The Plaintiff realized then that he had two barbs hanging from his back. Said barbs were hanging from his back for approximately two (2) hours while in the holding cell.
34. The Plaintiff complained about his back pain while in custody and requested for medical treatment. Plaintiff's requests were ignored.
35. Eventually, the Plaintiff received medical treatment and was transported to Jacobi Hospital.
36. The Plaintiff was treated at Jacobi Hospital and was warned about possible liver damage if the barbs were removed incorrectly. The Plaintiff suffered a small incision in his back.
37. After the removal of the barbs, the Plaintiff was escorted in handcuffs back to the 43rd Precinct.
38. The Plaintiff was fingerprinted and eventually transported to Central Bookings, whereupon, he was fingerprinted again, eye-scanned and searched.
39. The Plaintiff was detained for approximately eight (8) hours before being released without seeing a judge.
40. During the Plaintiff's detention, the Plaintiff's parents (father a retired member of the service) were given misleading information as to the Plaintiff's arrest and whereabouts.

41. The Plaintiff was released from Central Booking with no money; therefore, no way to travel home.
42. The Notice of Plaintiff's Claim and Notice of Intention to sue for damages eliciting the nature of claim, the date of, the place where and the manner in which the claim arose were duly served upon the Comptroller of the Defendant "City."
43. That a 50(h) hearing was held on November 20, 2018.
44. That more than 30 days have elapsed since the Notice of Claim and intention to sue has been served upon the Defendants and the said Defendants have neglected or refused to make any adjustment or payment thereof.
45. That this action is commenced within one year and 90 days after the cause of action arose.
46. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR FALSE IMPRISONMENT

47. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "46" with the same force and effect as if more fully and at length set forth herein.
48. That beginning on or about the 17th day of January, 2018, at or about approximately 12:50 a.m. at or near the "location" until the Plaintiff was released, the Defendants "Officers", their agents, servants and/or employees detained and imprisoned Plaintiff without any just cause or grounds.
49. That said imprisonment was caused by the Defendants "Officers", their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or causes to believe that the Plaintiff was guilty of any crimes for which he was charged.

50. The Plaintiff was wholly innocent and did not contribute in any way or manner to his arrest and imprisonment by the Defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.
51. That the Defendants, their agents, servants and/or employees, as set forth above, intended to confine the Plaintiff; the Plaintiff was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged.
52. That the Plaintiff was confined against his will until he was released.
53. That by reason of the aforesaid false imprisonment and detention, Plaintiff was subjected to great indignity, humiliation, loss of work and loss of freedom, and the said Plaintiff has been otherwise damaged.
54. That by reason of the aforesaid, the Plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR FALSE ARREST

55. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "54" with the same force and effect as if more fully and at length set forth herein.
56. That beginning on or about the 17th day of January, 2018, at or about approximately 12:50 a.m. at the "location", the Plaintiff was handcuffed and placed under arrest by the Defendants "Officers", their agents, servants and/or employees without any just cause or grounds, and held against his will under full force of arms.
57. That said arrest was caused by the Defendants "Officers", their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, and based on an illegal seizure and search of the Plaintiff, when the Defendants "Officers" lacked cause to believe that the Plaintiff committed, or was about to commit a crime or was guilty of any crimes.
58. The Plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the Defendants "Officers", their agents,

servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

59. That the Defendants "Officers", their agents, servants and/or employees, as set forth above, intended to seize, search, and arrest the Plaintiff; that the Plaintiff was conscious of the arrest and confinement; the Plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.
60. That by reason of the aforesaid false arrest, Plaintiff was subjected to great indignity, humiliation, stress and loss of freedom and the said Plaintiff has been otherwise damaged.
61. That by reason of the aforesaid, the Plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
FOR BATTERY AND ASSAULT

62. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "61" with the same force and affect as if more fully and at length set forth herein.
63. The Plaintiff was seized, searched, held in a chokehold, tased, kneed, kicked, struck, pushed, battered, assaulted, stripped searched and physically and emotionally brutalized by the Defendant, "City", and the "NYPD" its agents/servants, and/or employees, including Defendant "Officers".
64. That all said contact was committed without the Plaintiff's permission or consent.
65. That all said contact was unlawful and without privilege.
66. That the use of force was excessive and without justification.
67. That all contact committed by Defendants "Officers" through their agents, servants, and/or employees, including the Defendant "Officers", were offensive to Plaintiff and caused him to fear further contact and imminent harm, and caused Plaintiff to sustain physical and/or psychological injury.
68. That the above acts committed by the Defendants "Officers" constituted a battery and/or assault of the Plaintiff.

69. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

ON BEHALF OF THE PLAINTIFF FOR NEGLIGENCE

70. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "69" with the same force and affect as if more fully and at length set forth herein.
71. That the Defendant, "City" was careless and reckless in hiring, retaining, assigning, training and failing to retrain, monitoring, supervising and promoting as and for its employees, Defendants "Officers," in that said employee(s) lacked the experience, deportment and ability to be employed by the Defendants in the capacity in which they were utilized, i.e. as police Officers; in that the Defendant, "City" failed to exercise due care and caution in its hiring and promoting practices; in that the Defendant "City" failed to investigate the above named employees' backgrounds; in that the "City" failed to properly train, supervise and monitor the "Officers"; and in that the Defendant "City" was negligent in disciplining, retaining and retraining the named Defendants "Officers"; and in that the Defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.
72. That upon information and belief the "City" by and through its agents had received numerous civilian complaints and/or lawsuits, against Defendants "Officers" and/or the 43rd Precinct. that they were assigned to, prior to their seizure, search, discourtesy, fabrication of evidence and battery and assault of the Plaintiff on January 17th, 2018.
73. That the City failed to properly retrain said Officers, negligently continued to employ said Officers, negligently retained "Heilig," "Berisha," "Echevarria" and "Doe" despite evidence of their police misconduct and continued to assign said Officers to act in their capacities as police Officers without proper supervision, training and discipline.
74. That the "Officers", while acting within the scope of their employment, were negligent in that each failed to use such care in the performance of their police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that

each was negligent, careless and reckless in the manner in which they investigated and/or performed their police duties; in that they failed to intervene or mitigate police misconduct; in that the police department permitted or condoned the false arrest, and/or false documentation submitted by these and other Officers; and in that the Defendants "Officers", their agents, servants and/or employees were otherwise careless, reckless and negligent.

75. That the aforesaid occurrence, to wit: battery and assault, false arrest and imprisonment, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the Defendants, its agents, servants and/or employees including Defendants "Officers" without any negligence on the part of the Plaintiff contributing thereto.
76. That by reason of the aforesaid, the Plaintiff, was imprisoned, lost his freedom, and stressed, and he was thereby damaged.
77. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A FIFTH THROUGH EIGHTH CAUSES OF ACTION:

FOR VIOLATIONS OF PERSONAL CONSTITUTIONAL RIGHTS

UNDER 42 U.S.C. 1983, 1985 AND 1986 AGAINST THE CITY OF NEW YORK

78. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "77" with the same force and effect as if more fully and at length set forth herein.
79. That on or about the 17th day of January, 2018 at or about approximately 12:50 a.m. at the "location" the "Officers" were present thereat as part of their regular and official employment as police Officers for the Defendant, "City".
80. Plaintiff was lawfully and properly thereat, when the "Officers" acting as agents, servants and/or employees of the Defendant "City", forcibly stopped, seized and frisked the Plaintiff absent just cause, provocation or reason. The Plaintiff had not engaged in any criminal conduct or suspicious activity.

81. When the Plaintiff was retaliated against by the Officers who illegally, seized, searched, battered, assaulted, arrested, stripped searched because he asked questions during his illegal search.
82. Upon information and belief, the Officers were required to fill out a stop, question and frisk report.
83. Upon information and belief, they did not fill out and submit a stop, question and frisk report or stop question and frisk report worksheet as required.
84. Upon information and belief, the Officers fabricated a reason for searching the Plaintiff.
85. Further, the Officers present at the Plaintiff's arrest failed to report the false arrest.
86. Likewise, when the Defendants "Officers" were abusive to the Plaintiff, no officer intervened or reported the misconduct as required by the New York City Patrol Guidelines.
87. Upon information and belief, to date no disciplinary action has been taken against the offending Officers for engaging in said conduct or for failing to intervene, stop it or report it.
88. That in order to cover up their misconduct, the Officers individually and/or collectively, conspired to file false police reports, give false statements and/or sign a false criminal court complaint for the purpose of falsely imprisoning, falsely arresting and/or maliciously prosecuting the Plaintiff.
89. That said acts constituted an illegal seizure of the Plaintiff and deprived Plaintiff of him rights and liberties as set forth in the 4th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983 and/or 1986.
90. That said acts constituted acts of cruel and unusual punishment and deprived Plaintiff of his rights and liberties as set forth in the 8th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.

91. That said acts constituted acts that violated the Plaintiff's freedom of speech as protected under the 1st and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.
92. That said acts constituted acts of fabricating evidence, filing false reports and giving false statements, and such acts deprived Plaintiff of his rights and liberties as set forth in the 5th and 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.
93. That Plaintiff, as an African American male, was deprived of his right to equal protection under the law and was targeted and his rights violated based upon his race, a violation of the equal protection clause under the 14th Amendments of the Constitution of the United States and of the State of New York and under 42 U.S.C. Section 1983, 1985 and/or 1986.
94. That the Officers conspired by and through their conduct, including, among other things, their overt acts, their failure to intervene stop and report, threatening witnesses, and the falsification of reports and evidence, to deprive or hinder the Plaintiff's right to justice, and to injure him.
95. Upon information and belief, police Officers are rarely prosecuted, disciplined or investigated for providing false statements, filing false reports, failing to intervene or report misconduct, and/or making false arrests.
96. The Officers herein conspired to deprive the Plaintiff of equal protection of the law and substantive due process. The City's deliberate indifference to their conduct made such violations possible.
97. That the Plaintiff's false arrest, battery and assault, violation of his constitutional rights resulted from the Defendant City's practices, policies and/or customs, and/or their deliberate indifference to patterns and/or police practices which included excessive use of force; illegal use of police equipment; failing follow police guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; filing resisting arrest charges to cover up illegal use of force by police; engaging in racial profiling; failing to properly supervise, train, investigate or

discipline Officers; engaging in illegal stop, question and frisks, permitting or condoning illegal stop, search and seizure of property and persons, any and/or all of the above contributing to Plaintiff's false arrest and prosecution, and injuries.

98. Defendants "Officers" actions on January 17, 2018 were performed under the color of law and the policies, statutes, ordinances, rules, practices and regulations of the City of New York, and they were performed to the detriment of the Plaintiff.
99. That Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, battered, assaulted, and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983, 1985 and 1986 and the Constitution of the State of New York.
100. That by reason of the aforesaid, the Plaintiff was deprived of his liberty, lost income, battered, injured, and he was damaged.
101. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983, 1985 1986 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR AN NINTH THROUGH TWELFTH CAUSES OF ACTION:ALLEGING
VIOLATION OF CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. SECTION 1983, BY
POLICE OFFICERS HEILIG, BERISHA, ECHEVARRIA AND JOHN DOE IN THEIR
INDIVIDUAL CAPACITIES AND AS AGENTS
OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:**

102. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "101" with the same force and effect as if more fully and at length set forth herein.
103. That at all times hereinafter mentioned, the Defendant "Heilig" was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

104. That at all times hereinafter mentioned, the Defendant "Berisha" was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
105. That at all times hereinafter mentioned, the Defendants "Echevarria and Doe" were employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of their official capacity and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
106. That at all times hereinafter mentioned, the Defendant "Officers," individually and collectively, were acting pursuant to orders and directives from Defendant, "City".
107. That during all times hereinafter mentioned, the Defendants "Officers", individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the Plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.
108. That the unlawful and illegal conduct of Defendants "Officers" deprived Plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:
- i. The right of Plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States;
 - ii. The right not to be discriminated against based upon the Plaintiff's race, creed, sex, or sexual orientation;
 - iii. The right to Due Process Law;
 - iv. The right to equal protection under the law; and

v. The right not to be subjected to cruel and unusual punishment.

109. That by reason of the aforesaid violations such as, seizure of Plaintiff's person, his false arrest and false imprisonment, battery, falsifying evidence, and discrimination, the Defendant Police "Officers" violated Plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, "the Officers" and violated 42 U.S.C. §1983.
110. That as a direct proximate result of "the Officers" actions Plaintiff was physically and emotionally injured, and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.
111. That by reason of the aforesaid, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.
112. That by reason of the aforesaid, the Plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

AS AND FOR A THIRTEENTH THROUGH SIXTEENTH CAUSES OF ACTION:

ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS

UNDER 42 U.S.C. SECTION 1985, BY POLICE OFFICERS HEILIG, BERISHA,

ECHEVARRIA AND JOHN DOE IN THEIR INDIVIDUAL CAPACITIES

AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:

113. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "112" with the same force and effect as if more fully and at length set forth herein.
114. That at all times hereinafter mentioned, the Defendant "Heilig" was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
115. That at all times hereinafter mentioned, the Defendant "Berisha" was employed by the Defendant The City of New York and/or The New York City Police Department and was

acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

116. That at all times hereinafter mentioned, the Defendant "Echevarria" was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
117. That at all times hereinafter mentioned, the Defendant "Doe" was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
118. That at all times hereinafter mentioned, the Defendants "Officers", individually and collectively, were acting pursuant to orders and directives from Defendant "City".
119. That during all times hereinafter mentioned, the Defendants "Officers", individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and conspired to engage in the illegal conduct set forth this complaint to the injury of the Plaintiff, and deprived him of the rights, privileges and immunities secured to him by the First, Fourth, Eighth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1985.
120. That the Defendant "Officers" conspired to deprive Plaintiff of witnesses, evidence, a fair trial, exculpatory information and material, to intimidate and threaten, to abuse, to degrade, to batter and to due process of law and equal protection of the law.
121. That by reason of the aforesaid violations such as, seizure and search of Plaintiff's person, his false arrest and false imprisonment, battery and assault, falsifying evidence, and discrimination, the Defendant Police "Officers" violated Plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, "the Officers" and violated 42 U.S.C. §1985.

122. That as a direct proximate result of "the Officers" actions Plaintiff was imprisoned, physically and emotionally injured, and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.
123. That by reason of the aforesaid, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.
124. That by reason of the aforesaid, the Plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1985 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A SEVENTEENTH THROUGH TWENTIETH CAUSES OF
ACTION: ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1986, BY POLICE OFFICERS HEILIG, BERISHA,
ECHEVARRIA AND JOHN DOE IN THEIR INDIVIDUAL CAPACITIES AND
AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:**

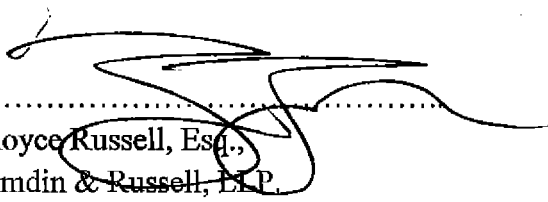
125. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "124" with the same force and effect as if more fully and at length set forth herein.
126. That at all times hereinafter mentioned, the Defendant "Heilig" was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
127. That at all times hereinafter mentioned, the Defendant "Berisha" was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
128. That at all times hereinafter mentioned, the Defendant "Echevarria" was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

129. That at all times hereinafter mentioned, the Defendant "Doe" was employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
130. That at all times hereinafter mentioned, the Defendants "Officers", individually and collectively, were acting pursuant to orders and directives from Defendant, The City of New York.
131. That during all times hereinafter mentioned, the Defendants "Officers", individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, individually and/or collectively engaged in, or conspired to engage in conduct that was illegal, and though she/he or they had the ability or power to prevent or aid in the preventing of the commission of the same the "Officers" neglected or refused to do so.
132. That the Officers, each of them could have aided or prevented the seizure and search of Plaintiff's person, the Plaintiff's false arrest and false imprisonment, the battery, the falsifying of evidence, and discrimination, the Defendant Police "Officers" refused or neglected to do so, and thereby violated Plaintiff's rights and privileges as provided to her in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, "the Officers" and violated 42 U.S.C. §1986.
133. That as a direct proximate result of "the Officers" actions Plaintiff was imprisoned, physically and emotionally injured, and was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.
134. That by reason of the aforesaid, Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.
135. That by reason of the aforesaid, the Plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages,

costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1986 and 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, the Plaintiff demands judgment against the Defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages (on the fifth through nineteenth causes of action) and such other and further relief as to the Court seems just and proper on the first through the twentieth causes of action.

DATED: New York, New York
April 18, 2019



Royce Russell, Esq.,
Emdin & Russell, LLP
Attorneys for the Plaintiff
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New York, New York 10018
(212) 683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the law firm of Royce Russell, Esq., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Summons and Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

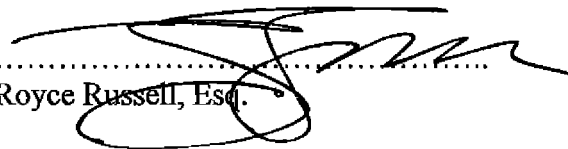
The undersigned further states that the reason this Summons and Complaint is made by me and not by the Plaintiff is that the Plaintiff do not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York

April 18, 2019



Royce Russell, Esq.